

CITY HALL SITE ON HILL NOW OWNED BY MUNICIPALITY

Formal Transfer of Caulfield Property Completed; Lot Is Bought in Accordance With Action Taken at Election.

FIGHT UPON LEGALITY OF BALLOT EXPECTED

Disregard of State Law On Filing Period May Change Tenor of Entire Mandate.

Oregon City today owns the Percy Caulfield property at Seventh and John Adams streets on which the new city hall is to be located. The location, under the referendum ordinance passed by the people at the November election, was bought by the city for \$5000. The property is 52 1-2 by 132 feet.

The deed to the property was filed by City Attorney O. D. Eby Tuesday. A cash payment with funds drawn on the special property fund, was made.

The question of locating the city hall has been the subject of an intense local fight, including various elections, court proceedings and secret agreements. The entire matter was thrown on the ballot November 7 in an issue to decide whether or not the hall should go on the hill or below the bluff. The hill location won.

Rumors have been current that the actual purchase of the property would be met by injunction suit, but if any action is to be taken it will be complicated by the fact that the city now owns the ground. A controversy over the legality of the election has grown up. The city did not file its notices with the county clerk in time to get on the regular county ballot, and as the result printed its own ballots and held the election under the city charter, excluding the state law. Whether it is legal or not attorneys differ upon and a decision by the courts is the only way of determining. Proponents of the hill location threatened to contest the election in the event that the down town location won and similar action by the advocates of the down town site is considered probable.

COLLEGIANS TO DEBATE UPON CITIES IN OREGON

OREGON AGRICULTURAL COLLEGE, Corvallis, Dec. 14.—John Beale of Oregon City, sophomore in commerce, has been selected by the Oregon City Commercial club to represent the city in the college chamber of commerce, and to carry the college news to the home city. Letters were sent to 71 cities, and practically all of them have responded, naming one of their strongest students in the school of commerce at the Oregon Agricultural college as official representative.

These students will be obliged to show in debate on the floor of the college organization just what resources and industries their cities possess, and will be pitted against representatives of other cities to prove which city is the best.

To get students of O. A. C. familiar with Oregon cities is the plan of the college commercial organization, and student boosters of their own home cities will be the result, believes Wayne K. Davis, senior in charge of the debates.

Leading parts in the commerce show scheduled for March 9 and 10 will be given these city representatives, and special invitations to their home associates will be sent by the school of commerce.

Clemenceau Sends Message to France From Ship by Radio

PARIS, Dec. 14.—Although former Premier Georges Clemenceau is far away from France, returning home upon the liner Paris, he made his political influence felt by wireless today.

Francois Cruey, correspondent of the Petit Parisien, who is accompanying the "Tiger," sent an interview from the liner which created a tremendous sensation in the chamber of deputies today and threatens to destroy party alignments.

The former premier made the following points in his statement:

First—Opposed occupation of the Ruhr by France.

Second—Urged ratification of the Washington conference treaty by France.

Third—Approval of proposal that President Harding should arbitrate Anglo-French differences.

Fourth—Warned France to make costly sacrifices to retain American friendship.

Political capital will be made of the interview when Premier Poincare addresses the chamber of deputies tomorrow.

FEW CHANGES IN BUDGET FOR NEXT YEAR ARE MADE

Lots of Smoke but Little Fire Develops at Session In Council Chambers; No Cut in Road Fund Is Made.

HAWLEY AUTO PARK APPROPRIATION HIT

Additional Hose, Insurance For Fire Department Is Given Unanimous Vote.

There was more smoke than fire at the budget meeting of the council chambers last night. The police department, road department, and practically every appropriation not definitely fixed by statute ran the gauntlet, shook itself, and with two exceptions came through whole.

The first exception in the financial program for the coming year came in the matter of fire protection. Sentiment on all sides developed for the purchase of more equipment, but ended in the increase of the appropriation for hose, providing for 500 instead of 250 feet. More would have been voted except that there were no funds. Provision for insurance on the apparatus was also made. The two increases were made by cutting down the amount to be paid on the principal of the fire department bonds from \$1500 to \$1000. Under the additional one mill tax voted November 7 an additional man is to be provided for the department and state accident insurance for the men. These things, however, were arranged in the tentative draft of the budget submitted to the meeting last evening.

Park Fund Is Cut

The other exception was the Hawley auto park. The city virtually washed its hands of further financial support of the park which it was pointed out should be self supporting. The appropriation of \$150 was cut to \$75, the amount necessary to meet overdrafts on the park account. The extra \$75 to put the park in shape next year was cut out.

A few sparks flew in the first consideration of the park question. Wm. Howell, member of the water board and the park committee, wanted to know where the \$600 voted by the city for the park last year had been spent, why the park was on paying basis, and how the money had been used if so much of the work and material for the improvement of the park had been done.

Councilman Metzner, also a member of the park committee, charged that all the money had been accounted for as records of the city would show and that Howell, being a member of the board, was as much to blame for the conditions as anyone.

Road Situation Is Hit

Charges that political debts were paid in the maintenance of the street department during the past three months of 1922 resulting in a deficiency in the fund of \$1900 was made by H. S. Mount, chairman of the street committee. The charge immediately drew from Tom Smith, the counter charge that personal grudges was the motive behind the attempt, made by Mount to lay off the street department.

As the councilman explained the situation, \$1900 over the budget had been paid out to complete Molalla avenue. He declared that the council had refused to lay off the street department in order to meet this deficiency out of the road fund. He maintained that the only legal way of meeting the overdraft was out of 1922 funds and opposed the inclusion in the 1923 program of a similar amount to meet the past year's overdraft. He advocated the merging of the entire road fund into one pot without departmental provision for the street department. The motion was killed and provision for the street superintendent and his assistants together with the definite appropriation of \$5000 instead of a blanket allowance for permanent roads was made.

Auto Is Allowed

The budget for the police department went through unscathed. Councilman Cross, as chairman of the health and police committee objected to the appropriation for the purchase of an auto and asked for the provision for a motorcycle and side car instead. He presented a series on the relative costs of operation.

Councilman Mount moved to entirely strike out the motion but the proposition was lost. Need for the motorization of the police department was emphasized. Wm. Andresen, chairman of the budget committee advocated the auto as a general utility vehicle for the police department and put it to a vote, the automobile plan was retained.

The appropriation of \$500 for a rest room will definitely go to aid the W. number of others pointed to the needs of C. T. U. It was decided. Andresen, Linn Jones, Mayor Shannon and a sixty for the provision of a rest room for the women and lauded the union for its work. The rest room location is forced to be changed and the meeting decided that the fund was not to be used toward the improvement of the bridge pier rest rooms but was to remain intact for the use of the C. T. U. in finding and equipping new quarters.

Miller Estate Is Admitted to Probate

Letters of administration in the estate of G. R. H. Miller who died July 2, 1919, were granted in the

TRI-STATE HIGHWAY ON COAST NOW ADVOCATED

California and Washington Organizations Back Move To Get Road's Completion.

SALEM, Ore., Dec. 14.—Officials and private citizens of Oregon are urged in a letter received by Governor Ritter from H. L. Walther, vice-president of the Medford Chamber of Commerce, to use their influence to bring about completion of the Pacific highway through Washington and California to connect with the highway through Oregon. Walther writes in behalf of O. G. Steele, of Yreka, Cal., president of the Associated Chambers of Commerce of Siskiyou, Cal.

Steele's letter to Walther complains that the California highway commission has neglected the northern part of that state. The letter points out that the inland route in California, which would connect with the Oregon highway, is a trunk route and should have attention prior to less important highways. Promises, it appears, have been made the Northern California counties, but the highway commission has failed to advertise for bids as they were expected to do several months ago.

"We have followed this matter up diligently," writes Steele, "and have finally succeeded in getting them to advertise for paving from Yreka to Grenada and the grading and widening of the road from Klamath river to the Oregon line. This latter unit, however, should have been included for paving, but for some reason or other, they have not seen fit to include the paving of this unit."

"We are after them again and we are now going after them for additional money to not only complete these two units, but to pave the highway from the Oregon line to Redding, which will then connect Portland with San Francisco by a continuous pavement."

"To accomplish this, and assuming that the road is paved from Yreka to Grenada, 109 miles will remain yet unpaved. Ten miles of this has not even been graded."

"Through good authority, we know that the commission in a recent budget, set aside \$1,000,000 for a highway in the Feather River canyon. This is not as essential as the completion of the main trunk line from Oregon south. Moreover, the \$1,000,000 set aside for this unit is only a drop in the bucket, as there is no question but that this Feather River highway system would require from \$5,000,000 to \$8,000,000 and we feel satisfied that Governor Richardson will not permit the expenditure of this money at this time, or at least until such a time as the trunk line has been completed."

"It therefore appeared to us that both Oregon and Washington should get busy and use what influence possible to bring about the completion of the inland highway and thought it possible for you to bring about a direct appeal from the governor of Oregon and the governor of Washington to the governor of California, and also from the highway commissions of Oregon and Washington to the highway commission of California. The papers in Oregon, of course, should also lend their support."

GOVERNMENT SURVEY OF ASTORIA IS BEGUN

WASHINGTON, Dec. 15.—Secretary of War Weeks today wired war department officials at Portland to give him an immediate report of the situation at Astoria, Or., where many homes are homeless as a result of last Saturday's fire. If the report Weeks receives warrants, a joint resolution providing for the purchase of supplies, medicines and food, etc., will be rushed through congress as an emergency measure.

The resolution now drawn provides \$1,000,000, but this amount will be changed to conform to the reports from army engineers at the scene of the disaster.

Major R. Park, army engineer, is at Astoria today making a survey of the city's needs, in accordance with instructions received from Secretary Weeks. He is expected back either tonight or Saturday to forward details of his investigations. No report of his findings has been received at the engineers' headquarters in the custom house.

Shantung City Now Sans Government

TOKIO, Dec. 15.—Tsingtao, Shantung, which has just been turned back to China by Japan, in accord with the agreement reached at the Far Eastern conference in Washington is substantially without government, according to dispatches from the Japanese consul there.

Two factions—one representing C. T. Wang, the Shantung commissioner of the Peking government, and the other apparently upholding the tuchun or governor of Shantung—are reported to have appealed to the Japanese to hand over to them the money in the treasury and official documents. The dispatch, however, fails to say to whom the Japanese surrendered these assets.

Grand Jury to Act Upon Larceny Case

L. A. Smith, charged with the larceny of jump-carts and steel rails, was given a preliminary hearing in the justice court Monday and bound over to the grand jury. Smith was charged with his own recognition

MUNICIPAL TAXES FOR OREGON CITY REACH NEW MARK

Increase in School and Fire Department Imposts Will Raise Total Millage of 1923 To More Than Thirty-six.

OFFICIAL FIGURE IS NOT YET AVAILABLE

Statistics for Coming Year Are Still in Process of Compilation; Value Gains.

Oregon City this year is facing the heaviest tax levy in the history of the municipality. Increases voted for the fire department, for school administration and the continuance of the levy for the partial payment of the new Pacific Highway bridge will increase the impost to 36.4, not inclusive of any of the state and county levies. These, which are not yet computed for the coming year, will make the aggregate nearly 70 mills.

The figure for the city itself is not exact because the 1923 valuations for the county have not been completed by Assessor Wm. Cook, and the assessor's office is not yet in a position to make an accurate estimate, although it is believed that a slight increase in the local valuation is probable which will result in cutting down the millage a trifle.

School Levy Heaviest

The heaviest tax in Oregon City is for school purposes, amounting to approximately 13.4 mills, an increase of two mills having been voted over last year.

For municipal administration purposes Oregon City pays seven mills. A one mill tax for the library and three mills for the fire department, the latter figure representing a one mill increase voted November 7.

To take care of the bonded indebtedness of the county, Oregon City pays a seven mill tax to meet interest and principal of \$275,000 general fund bonds and a one and a half mill tax to meet \$30,000 funding bonds additional. A one mill tax was voted with the passage of the \$35,000 bonding act to provide for the proposed city hall.

Total Indebtedness \$437,000

The total bonded indebtedness of the city is \$437,000 according to City Recorder C. W. Kelly. This figure includes a total of \$375,000 general funding bonds, of which \$70,000 is current without any tax provision for its retirement. The city hall bond issue has been voted but not sold and as the tax is gradually being paid into the treasury both interest and principal are accumulating to the city's credit. Included in the total is \$12,000 elevator bonds, for which no tax retirement provision is made and \$15,000 fire department bonds. Of this latter amount \$12,000 is owned by the city cemetery irrevocable fund. A tax provision for the retirement of this issue was included in the increase voted this year.

Added to the various imposts which go to make up the 36.4 mill total is a levy of two and a half mills voted as a special road tax. This levy is the second special road impost in the history of the municipality and was voted for the year of 1922 for the first time to take care of Oregon City's payment upon the Willamette river bridge which was financed by the state, county, Oregon City and West Linn.

The estimates of the millage are based upon the valuations for the past year. The levies are made by the city in dollars, computed approximately upon the basis of what a millage tax would bring. The exact percentage of the ratio is decided by the assessor on the basis of the current assessment sheet.

Duelists Both Miss; Honor Is Satisfied

MONTEVIDEO, Uruguay, Dec. 14.—The great Brum-Herrera duel was only a bloodless memory today. Baltazar Brum, dashing president of Uruguay, who resigned his office to fight Luis Herrera, political opponent, was invited to retain his office, since the affair of honor passed off peacefully, lending it the proper air of mortality.

Substitution at the eleventh hour of pistols for two sabres saved the duelists from injuries certain to have been sustained had they fought with the latter weapons.

Brum and Herrera were old enemies. The former won the presidency over Herrera at the last general elections. Herrera promptly issued a manifesto, thanking his supporters and mentioning the fact that Brum was elected, thanking him for his services to the nation. The president replied in kind. Herrera challenged him to a duel. Brum accepted. The "court of honor" ruled Brum could not meet Herrera because of the presidency. Brum resigned the presidency.

War in Near East Is Believed Averted

LAUSANNE, Dec. 14.—War and massacre in the Near East, feared inevitable if the Lausanne peace conference broke up, was averted at the eleventh hour today.

Ismet Pasha, Turkish spokesman accepted a British proposal for protection of Christian minorities in Constantinople and other parts of Asia

TRAIN WRECKED, STEAM COOKS FIVE TO DEATH

HOUSTON, Tex., Dec. 14.—Five deaths at a hospital this morning brought the total to 14 dead to date as a result of the crash of Houston East and West Texas passenger train No. 25 with a switch engine at Humble, nearby oil town, late Wednesday night.

Conductor William Campsey, Houston; M. Young, Van Noy company agent; an unidentified white man and six negroes were cooked to death by live steam. Approximately 23 other negroes were badly scalded, five of them so seriously that they died, bringing the death total up to 14 by 9:30 o'clock this morning.

The train was known as the "Nacogdoches Luckin Rabbit," running between Houston and Shreveport.

Although they received a severe shaking up, none of the passengers in the Pullman cars were injured. All of the dead and injured were passengers in the first and second coaches of the train, into which the live steam from the switch engine's steam chest poured.

Outstanding among many instances of bravery and presence of mind recorded during the work of rescuing the victims was one man who refused to give his name. This man catapulted himself into the coach while it was still a seething cauldron, standing the entire length of the car, breaking windows as he progressed and thus as a result of his bravery the steam poured out of the car and relieved the stifling victims. This action is believed to have saved many lives.

Panic followed the crash in the negro coach. Wild, horrified yells and shrieks rang out as a mad scramble for windows and doors began.

A few minutes after the crash, a relief train carrying doctors and nurses was en route to the scene from Houston. Work of extricating the dead and injured was begun by Humble physicians and citizens before the relief train arrived, however.

According to members of the crew of the switch engine, a watchman named Smith had been left in charge while they went to a nearby restaurant for their supper. The first they knew of the engine's "drifting" came with the impact of the two locomotives.

TWO AMERICANS KILLED IN ROBBERY IN MEXICO

HOUSTON, Tex., Dec. 14.—Details of a Mexican payroll robbery December 2, in which two Americans and a Mexican were killed and another American injured, have been made public by Clemmons West, brother of one of the slain men, at his home in Humble, near here.

West has just returned from Mexico, where he was in the employ of the Cia. Mexicana de Petroleo El Agulla, a British subsidiary of the Royal Dutch Shell Oil company.

The slain Americans were J. G. West, 22, of Humble, and Charles E. Snapp, 28, of Houston. The injured man was Charles Miller, who lived in Walter county.

The robbery occurred between the little village of Puerto, in the state of Tabasco, and the camp of the oil company. West, his brother, Snapp and several other Americans were on vacation in Puerto when they were asked by officials of the company to accompany the monthly payroll back to camp.

The journey was made over a narrow gauge railway operated between the two points. Passing the foot of a mountain within a few kilometers of the camp, the train was fired on from ambush. The Mexican engineer was killed instantly. Another volley and West and Snapp fell dead. Miller was shot through the hip and when West left Puerto for the United States was believed to be on the road to recovery.

After the first volley, the other Americans in the party dropped on their stomachs and feigned death. The firing over, they ran for a nearby creek, but were captured by the bandits.

PROGRESSIVE BLOC TO FIGHT FARM PROGRAM

WASHINGTON, Dec. 14.—Administration leaders agreed yesterday to the program of the "progressive bloc" for substitution of farmer credits legislation for the pending ship subsidy. In return the bloc disclosed its purpose of attacking the administration farmer relief program. Assured of Democratic aid, Republican insurgents prepared to oppose the Lend-Lease bill as inadequate to meet the needs of agriculture.

Improved marketing facilities in addition to easier credits was announced as the rallying point of the bloc. Senator Norbeck urged enactment of some such measure as he has offered in the senate—giving agricultural paper the same status as other commercial notes and removing complaints of disabilities in the present co-operative marketing statutes.

Martha E. Graves Dies at Canemah

Mrs. Martha E. Graves, wife of E. T. Graves, died last night at the home of her son L. W. Smith, of Canemah. She was 65 years of age, and a native of this state having lived in Oregon City for the past 28 years. She is survived by her husband and eight children.

The funeral services will be held Sunday at 2 o'clock from the Methodist church with the interment in Mountain View.

\$200,000 TAKEN FROM U.S. MINT IN DARING GUNFIGHT

Denver Reserve Is Raided by Bandits; Guard Is Killed In Jail of Shot; One of Thieves Is Thought Slain.

AUTOMOBILE IS USED BY YEGGS IN ESCAPE

Federal and Police Officials Take Charge of Search for Loot; Car Seen by Sheriff.

DENVER, Colo., Dec. 18.—Leaping from an automobile which had drawn up alongside of a federal reserve delivery wagon at the main entrance of the Denver mint, and shooting toward four federal reserve guards, who were emerging from the building carrying \$200,000 in \$5 bills, two bandits this morning shot and fatally injured Charles Linton, one of the guards, seized the entire consignment of money, sprang into their motor car and escaped.

The third member of the bandit group remained at the wheel of the automobile. One of the bandits is believed to have been shot while making an escape.

Guard Hits Bandit

As soon as the fifty bundles of paper money were placed in the bandit car the men entered it and the car headed east at high speed. It was while one of the bandits, described as wearing a light overcoat and hat, was entering the car that a shot from the gun of a guard on duty on the second floor of the mint, took effect.

The bandit was seen to throw his hands into the air and was grabbed by the other men in the car as it rushed down the street. In their flight the car forced an automobile driven by A. L. Bethke, assistant city attorney, into a fire plug to escape a collision. The fire plug was broken off and flooded the street.

Officials Begin Search

Manager of Safety Downer and Chief of Police H. R. Williams accompanied the police riot car containing the first squad of police to answer the call to the mint and assumed active control of the search for the bandits.

A prohibition agent returning from a trip into the country reported shortly after noon that as he was driving into the city a large touring car, answering the description of the bandit car, passed him going east at a high speed.

Peter Kiedinger, one of the door guards at the mint said he saw the bandit believed to have been wounded crumple up on the running board of the automobile as it started away from the mint. The bandit had a colored handkerchief around his face.

"We were afraid to shoot right into the thick of it," said Kiedinger. "We couldn't tell which were the bandits and which were the guards."

Discrepancies Are Noted

As police began to question witnesses to the robbery discrepancies in the number of bandits ally engaged in the holdup began to appear. Several witnesses said they saw three and four men. Director Grant of the mint said but two men actually participated in the robbery, while a third remained at the wheel in the automobile.

The robbery, which occupied five minutes from the time the bandits appeared until they fled, was said by police to involve the largest amount of money stolen here in any one hold-up in the city's police history. During the five minutes that the robbery took place, the alarm going in the mint was ringing continuously.

Man Dies in Hospital

Linton died in a hospital just before noon.

An impulse to fire a final volley at the guards of the mint and federal reserve guards may have cost the youthful bandit who directed the robbery his life, according to Peter Kiedinger, one of the mint guards who witnessed the daring holdup and shooting.

"When the robbers turned into the civic center, less than a half block from the mint, the leader poised on the running board and emptied his revolver at the guards. Wearing a light overcoat, his figure stood out clearly against the background of the drawn side curtains. A bullet from my gun or one of the other mint guards aimed directly at the bandit struck him. The bandit swayed and collapsed. An auto door opened and he was pulled inside the car, which sped on," said Kiedinger.

Vincent Astor Sends Stricken City \$5,000

ASTORIA, Dec. 14.—One of the largest cash donations received or announced at local relief headquarters Wednesday was the one made by Vincent Astor of New York, head of the house of Astor, whose illustrious forebear, John Jacob Astor, founded this city in 1811. Astor telegraphed \$5000 to be used in general relief work here. His message follows:

"I am forwarding you by Western Union telegraph \$5000 to be expended at your discretion for general relief. May I not express to you and through you to the citizens of Astoria my sincere sympathy in this great catastrophe, with a conviction that the initiative resourcefulness and energy displayed by your city throughout the past shall overcome even the disaster and assure a future of happiness and prosperity."

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